ORDINANCE NO. 23-029Z-Sub A

Town of North Providence

AN ORDINANCE AMENDING

CHAPTER 35 ZONING

Note: Words set as ~~strikeover~~ are to be deleted from the ordinance; words set in underline are to be added to the ordinance.

Article II - Zoning District Regulations

203. District Use Regulations

	R12	R8	RL	RG	IS	CP	CV	CG	ML	MG	OS
A. Agricultural Uses											
3. Commercial Nursery	N	N	N	N	N	N	Y	Y	~~S~~Y	~~S~~Y	N

	R12	R8	RL	RG	IS	CP	CV	CG	ML	MG	OS
B. Residential Uses											
1. Single-family detached dwelling	Y	Y	Y	~~S~~Y	~~S~~Y	~~S~~Y	N	N	N	N	N
2. Accessory dwelling Units (Under Article II)	Y	Y	Y	~~S~~Y	~~S~~Y	~~S~~Y	N	N	N	N	N
3. Two family dwelling structure	N	N	~~S~~@Y	~~S~~Y	~~S~~Y	~~S~~Y	~~S~~Y	N	N	N	N
4. Multi-family dwelling structure (3 or more)	N	N	N	S	~~S~~N	S	S	N	N	N	N
5. Lodging or Guest House	N	N	N	N	~~S~~N	~~S~~N	~~S~~N	N	N	N	N
7. Hotel	N	N	N	N	N	N	N	~~S~~N	N	N	N
8. Motel	N	N	N	N	N	N	N	~~S~~N	N	N	N
10. Rest Home or Convalescent Home	N	N	N	~~S~~Y	~~S~~Y	N	N	N	N	N	N

	R12	R8	RL	RG	IS	CP	CV	CG	ML	MG	OS
C. Open Recreation Uses											
1. Commercial recreation not otherwise prohibited	N	N	N	N	N	N	~~S~~N	~~S~~N	N	N	Y

	R12	R8	RL	RG	IS	CP	CV	CG	ML	MG	OS
D. Public and Semi-Public Buildings											
~~1. Religious Inst. Or Charitable Inst~~	N	N	N	N	~~S~~Y	N	N	N	N	N	N
(No Commercial Activity) 1~~2~~. Religious Inst. Or Charitable Inst.	N	N	N	N	~~S~~Y	N	N	N	N	N	N
~~(Commercial activity)~~ 2~~3~~. Library, Museum, etc.	N	N	N	N	~~S~~Y	N	N	N	N	N	N
3~~4~~. Hospital or Clinic(not for mental or alcoholic treatment)	N	N	N	N	~~S~~N	N	N	N	N	N	N
4~~5~~. Hospital (for mental or alcoholic treatment)	N	N	N	N	~~S~~N	N	N	N	N	N	N
5~~6~~. Mental Health Facility	N	N	N	N	~~S~~N	N	N	N	N	N	N
7~~8~~. Government Building (except garage or utility)	N	N	N	N	~~S~~N	N	N	N	N	N	N
8~~9~~. Garage or Utility Government	N	N	N	N	~~S~~N	N	N	N	N	N	Y
11~~12~~. Public Recreation Hall	N	N	N	N	~~S~~N	N	N	N	N	N	Y
12~~13~~. Clubs and Fraternal Organizations	N	N	N	N	N	~~S~~N	~~S~~N	N	N	N	N
13~~14~~. Radio/TV/Phone Antenna Tower	N	N	N	N	~~S~~N	N	N	~~S~~N	N	N	N

	R12	R8	RL	RG	IS	CP	CV	CG	ML	MG	OS
E. Office Use											
4. Telemarketing Office	N	N	N	N	N	Y	~~S~~N	Y	N	N	N
6. Professional School Hair, Computers, etc.	N	N	N	N	N	~~S~~N	~~S~~N	Y	N	N	N
7. Office for Wholesale or Manufacturing Use	N	N	N	N	N	~~S~~N	Y	Y	N	N	N

	R12	R8	RL	RG	IS	CP	CV	CG	ML	MG	OS
F. Restaurant and Entertainment											
3. Drive-in Restaurant	N	N	N	N	N	N	N	S	N	N	N
4. Tavern or Night Club	N	N	N	N	N	N	N	~~S~~N	N	N	N
5. Theater or Concert Hall	N	N	N	N	N	N	N	~~S~~N	N	N	N
6. Indoor Commercial Recreation, ie Fitness Center, Tennis Club	N	N	N	N	N	N	N	~~S~~N	N	N	N
7. Lunch Room or Cafeteria (accessory advertising	N	N	N	N	N	N	N	~~S~~N	~~S~~N	N	N

	R12	R8	RL	RG	IS	CP	CV	CG	ML	MG	OS
G. Service Business											
4. Landscaping Business	N	N	N	N	N	~~S~~Y	~~S~~Y	~~S~~Y	N	N	N
7. Laundromat	N	N	N	N	N	~~S~~N	~~S~~N	Y	N	N	N
9. Radio/TV Studio	N	N	N	N	N	~~S~~N	Y	Y	N	N	N
12. Gasoline Station (Gasoline Sales Only)	N	N	N	N	N	S	S	Y	N	N	N
13. Gasoline Station (Major Repairs)	N	N	N	N	N	~~S~~*N	~~S~~*N	Y	N	N	N
16. Vehicle Rental Agency	N	N	N	N	N	~~S~~N	~~S~~N	Y	N	N	N
18. Vehicle Washing Shop	N	N	N	N	N	N	N	~~S~~Y	N	N	N
(Less than 6 unrelated children) 20. Family Day Care Home	N	N	N	N	N	~~S~~Y	~~S~~Y	~~S~~Y	N	N	N
(More than 6 unrelated children) 21. Child Day Care Center	N	N	N	N	N	~~S~~Y	~~S~~Y	N	N	N	
22. Drive Thru Window (Incidental to a main service/retail use)	N	N	N	N	N	S	S	S	N	N	N

	R12	R8	RL	RG	IS	CP	CV	CG	ML	MG	OS
J. Wholesale Business and Storage											
1. Wholesale Business and Storage of Non-flammable and Non-explosive material in a Building.	N	N	N	N	N	N	N	~~S~~N	Y	Y	N
2. Open lot storage of building materials and machinery	N	N	N	N	N	N	N	N	~~S~~N	~~S~~N	N
3. Open storage of solid fuel, sand, and gravel storage use	N	N	N	N	N	N	N	N	~~S~~N	~~S~~N	N
5. Storage of flammable and/or explosive materials	N	N	N	N	N	N	N	N	~~S~~N	~~S~~N	N
6. Mini-storage facility	N	N	N	N	N	N	N	N	~~S~~N	~~S~~N	N

	R12	R8	RL	RG	IS	CP	CV	CG	ML	MG	OS
K. Service Industries											
1. Auto Body or Paint Shop	N	N	N	N	N	N	N	N	~~S~~N	~~S~~N	N
2. Blacksmith shop	N	N	N	N	N	N	N	N	~~S~~N	~~S~~N	N
3. Furniture Refinishing	N	N	N	N	N	N	N	Y	~~S~~N	~~S~~N	N

	R12	R8	RL	RG	IS	CP	CV	CG	ML	MG	OS
L. Industrial Uses											
13. Plastic and Pyroxylin Manufacture	N	N	N	N	N	N	N	N	N	~~S~~N	N
14. Potash Manufacture	N	N	N	N	N	N	N	N	N	~~S~~N	N
Operation 16. Rubber Manufacture or Treatment	N	N	N	N	N	N	N	N	N	~~S~~N	N
17. Soap Manufacture	N	N	N	N	N	N	N	N	N	~~S~~N	N
18. Sodium Compounds Manufacture	N	N	N	N	N	N	N	N	N	~~S~~N	N
20. Textile Dyeing or Finishing	N	N	N	N	N	N	N	N	N	~~S~~N	N
21. Tile or Brick Manufacturing	N	N	N	N	N	N	N	N	~~S~~N	Y	N

Article V - Variances and Special Use Permits

502. Hearing and Notice

This section describes the process for acceptance and notice of applications for special use permits or variances, which are not part of a unified development review application. The process for unified development review is described in Section 805.

The ~~Zoning Board~~ permitting authority shall, immediately upon receipt of an application, request that the Planning Board shall report its findings and recommendations, including a statement on the general consistency of the application with the goals and purposes of the Comprehensive Plan of the Town, in writing to the ~~Board~~ permitting authority within thirty (30) days. The ~~Board~~ permitting authority shall hold a public hearing on any application for variance or special-use permit in an expeditious manner, after receipt, in proper form, of an application, and shall give public notice thereof at least fourteen (14)

days prior to the date of the hearing, which notice shall include the precise location of the subject property, including the street address, and a description of the relief sought, as follows:

505. Standards for Special Use Permits

~~The Zoning Board of Review may not grant a special use permit unless it finds~~

~~A. That the use will comply with all applicable requirements as set forth in Article V and Article II or elsewhere in this Ordinance, except, if a dimensional variance is granted simultaneously with said special use permit. However, Dimensional relief shall not be granted for number of dwelling units in conjunction with a special use permit.~~

~~B. That the use will be in harmony with the general purpose and intent of this Ordinance and the Comprehensive Plan of the Town of North Providence.~~

~~C. That the granting of the special use permit will substantially serve the public convenience and welfare.~~

~~D. That the use will not result in or create conditions inimical to the public health, safety, morals, and general welfare.~~

~~E. That it will not substantially or permanently injure the appropriate use of surrounding property.~~

~~506. Consideration of the Board in Granting Special Use Permits~~

~~In granting any special use permit, the Board shall consider whether or not satisfactory provisions and arrangements have been or will be made concerning, but not limited to the following matters, where applicable:~~

~~A. (1) Ingress and egress to the lot and to existing or proposed structures thereon with particular reference to automotive and pedestrian safety and convenience, traffic flow and control, and access in case of fire, emergency or catastrophe;~~

~~B. (2) Off street parking and loading areas where required, with particular attention to the items in (A) above, and the noise, glare or odor effects of the special use permit on adjoining lots;~~

~~C. (3) Trash, storage and delivery areas with particular reference to the items in (A) and (B) above;~~

~~D. (4) Utilities, with reference to locations, availability and compatibility;~~

~~E. (5) Screening and buffering with reference to type, dimensions and character;~~

~~F. (6) Signs, if any, and exterior lighting with reference to glare, traffic safety, and compatibility and harmony with lots in the zoning district;~~

~~G. (7) Required yards and other open space;~~

~~H. (8) Public access to water bodies, rivers, and streams;~~

~~I. (9) Access to air, light, views and solar access;~~

~~J. (10) General compatibility with lots in the same or abutting Zoning Districts.~~

~~K. (11) When considering residential density for a proposed two-family dwelling structure (Use Code B3) or multi-family dwelling structure (Use Code B4), in addition to the standards contained in section505, the Board shall consider the existing character and density of, and the impact to, the surrounding neighborhood resulting from the proposed density.~~

The following uses shall require a special use permit from the permitting authority. Special use permits must adhere to the specific and objective criteria specified herein as to each use:

a) Multi-family dwelling structures
b) Drive-in Restaurant and Drive Thru Window;
c) Gas Stations;

(1) Uses not listed in Table of Uses.

To the extent a proposed land use is not specifically listed in Section 203 District Use Regulations the property owner may submit a written request to the Zoning Board of Review for an evaluation and determination of whether the proposed use is of a similar type, character, and intensity as a listed use requiring a special-use permit. The Zoning Board of Review will have 30 days to provide a written evaluation to the property owner. Upon such determination, the proposed use may be considered to be a use requiring a special-use permit.

(2) Criteria for Special Use Permits

a) Multi-family dwelling structure (3 or more)
   i. Project shall not require any dimensional relief.
   ii. Multi-family in commercial zones shall utilize the dimensional requirements in the RG zone.

b) Drive-through facility

(i) Minimum lot size shall be 10,000 square feet.

(ii) There shall be no on-site stacking lane within 50 feet of a residential structure.

(iii) The applicant shall provide a vehicular stacking plan with the required number of spaces, by use, as described below:

Banks – 8 vehicles
Car Washes – 7 vehicles
Coffee Shops – 13 vehicles
Fast Food Restaurants – 12 vehicles
Pharmacies – 5 vehicles

(iv) There shall be no microphone and amplification system within 150 feet of a residential structure or within 100 feet of a residential zone

c) Gas Stations

i. Gas stations shall meet the following minimum lot requirements: lot area of 20,000 square feet, lot depth of 100 feet, and lot width of 100 feet.

ii. Structures and all pump islands, compressed air connections, and similar equipment shall be set back a minimum of 20 feet from side and rear lot lines.

iii. No access driveway may exceed 25 feet in width. For a corner lot, curb cuts are restricted to one curb cut per street frontage.

iv. The minimum distance between the fueling area canopy and the curb line shall be 12 feet and 20 feet from any interior lot line.

v. Underground tanks shall meet the following requirements:

a. The maximum storage capacity for petroleum products is 42,000 gallons.

b. The minimum separation required between underground tanks, adjoining buildings, and lot lines is 25 feet. Structures are exempt from the separation distance requirement if there are no basements or pits that extend below the top of any tank within the separation distance.

c. No above ground fuel storage permitted.

vi. Motor vehicle repair is permitted as part of a gas station use. However, repair work is limited only to minor repair work, such as tire or tube repair, battery changing, lubrication, engine tune-ups, brake and muffler repair or replacement, and similar types of work. Minor repair work does not include replacement of engines, replacement of transmissions, or any bodywork. All such repair work shall be conducted entirely within an enclosed structure. Storage of all merchandise, auto parts, and supplies shall be within an enclosed structure.

vii. Electric vehicle charging stations may be included as an accessory use to a gas station but may not be counted toward parking requirements.

506. Special Use Permits and Dimensional Variances

When a use is permitted by special use permit, the permitting authority may grant dimensional relief in conjunction with said special use permit if the special use could not exist without the dimensional variance. The permitting authority shall consider the special use permit and the dimensional variance together to determine if granting the special use is appropriate based on both the special use criteria and the dimensional variance evidentiary standards in Section 503.

APPROVED AS TO FORM AND LEGALITY:

TOWN SOLICITOR

ADOPTED: June 4, 2024

COUNCIL PRESIDENT

APPROVED: June 6, 2024

MAYOR

TOWN CLERK